

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Donovan Webber	Team: Squad #12	CCRB Case #: 202409326	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 08/31/2024 9:00 PM	Location of Incident: Intersection of East 175th Street and Mohegan Avenue	18 Mo. SOL 2/28/2026	Precinct: 48
Date/Time CV Reported Mon, 09/09/2024 9:09 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 09/18/2024 12:50 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Melissa Marquez	07140	972768	048 PCT
2. PO Ismael Reyeslopez	02134	972897	048 PCT
3. PO Ferdows Kabuli	31516	975573	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Carl Becker	03064	954539	048 PCT
2. PO Miyorquis Rumaldo	16555	975785	048 PCT
3. PO Angelo Hernandez	25329	971996	048 PCT
4. PO Sinahi Lopez	22551	974994	048 PCT
5. PO Ostap Pryjdun	13814	977641	048 PCT
6. PO Phong Le	13478	969890	048 PCT
7. DTS Robert Travis	03106	949741	ESS 04
8. PO Kaseem Pennant	29437	965405	048 PCT
9. PO Jeffrey Figueroa	18882	976953	048 PCT
10. PO Bladimir Garcia	05599	975483	048 PCT
11. PO Cesar Camarillo	12764	969562	048 PCT
12. PO Shandell Williams	02350	978291	048 PCT
13. PO Rubenson Marcellus	14793	956063	048 PCT
14. PO Diana Chavez	00865	976037	048 PCT
15. CPT Douglas Soriano	00000	949682	048 PCT
16. PO Paul Maciascevallos	28099	969184	048 PCT
17. DTS Paul Lee	01246	969170	048 PCT
18. PO Kalifa Johnson	09893	977982	048 PCT
19. PO Joseph Mercedes	13312	978335	048 PCT
20. PO Linda Woods	05930	951006	048 PCT
21. PO Dylan Stackhouse	10459	973789	048 PCT
22. PO Raymond Sostre	04923	976418	048 PCT
23. SGT Robert Russo	03741	953351	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
24. DTS Justin Verrino	02309	951389	ESS 04
25. PO Jerry Lamour	23022	976968	048 PCT
26. PO Stheffy Pichardo	02735	978714	048 PCT
27. PO Eddy Duran	15234	975448	048 PCT
28. PO Kevin Mcspedon	24156	963158	048 PCT
29. PO Claudia Cespedesurban	20390	974789	048 PCT
30. PO Mirianny Payanomejia	15339	977324	048 PCT
31. SGT Collin Burden	01616	962277	048 PCT
32. PO Odalis Veras	29332	942665	048 PCT
33. PO Joseph Baerga	22724	969499	048 PCT
34. PO Ruben Farrell	21272	963024	048 PCT
35. PO Enmanuel Lopez	20311	962555	048 PCT
36. PO Travis Rivera	18749	968096	048 PCT
37. PO Hiram Nieves	10194	970028	048 PCT
38. DTS Jessica Mayorga	05212	939369	048 PCT
39. PO Christopher Hendrickson	09384	970592	048 PCT
40. PO Joseph Whelan	24140	969426	048 PCT
41. PO Stephenie Peralta	10568	978701	048 PCT
42. PO Luz Crisotomo	07624	970468	048 PCT
43. PO Adrian Deleon	27260	977116	048 PCT
44. PO Juan Acostavilla	30227	966924	048 PCT
45. PO Steven Santana	13927	974518	048 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Ismael Reyeslopez	Discourtesy: Police Officer Ismael Reyeslopez spoke discourteously to § 87(2)(b)	A . Within NYPD Guidelines
B . PO Ismael Reyeslopez	Force: Police Officer Ismael Reyeslopez used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . PO Ismael Reyeslopez	Abuse: Police Officer Ismael Reyeslopez threatened § 87(2)(b) with the use of force.	C . Substantiated
D . PO Ismael Reyeslopez	Discourtesy: Police Officer Ismael Reyeslopez spoke discourteously to an individual.	D . Within NYPD Guidelines
E . PO Ismael Reyeslopez	Abuse: Police Officer Ismael Reyeslopez threatened an individual with the use of force.	E . Within NYPD Guidelines
F . PO Melissa Marquez	Force: Police Officer Melissa Marquez used physical force against § 87(2)(b)	F . Substantiated
G . PO Ismael Reyeslopez	Force: Police Officer Ismael Reyeslopez hit § 87(2)(b) against the ground.	G . Within NYPD Guidelines
H . PO Ferdows Kabuli	Force: Police Officer Ferdows Kabuli hit § 87(2)(b) against the ground.	H . Within NYPD Guidelines
I . PO Melissa Marquez	Force: Police Officer Melissa Marquez hit § 87(2)(b) against the ground.	I . Within NYPD Guidelines
J . PO Ismael Reyeslopez	Abuse: Police Officer Ismael Reyeslopez threatened § 87(2)(b) with the use of force.	J . Within NYPD Guidelines

Case Summary

§ 87(2)(b) filed this complaint with IAB via telephone on September 9, 2024, generating original log § 87(2)(b). The CCRB received a spin-off log on September 18, 2024.

On August 31, 2024, at approximately 9:00 PM, in the vicinity of East 175th Street and Mohegan Avenue in the Bronx, § 87(2)(b) happened upon an NYPD response to an incident, wherein a loose dog had killed four other dogs and a crowd of people who either watched or ran away from it, prompting NYPD officers to block off Mohegan Avenue. PO Ismael Reyeslopez, of the 48th Precinct, said to § 87(2)(b) “I don’t give a fuck,” “Get the fuck back,” and “Don’t fucking touch me” (**Allegation A: Discourtesy, Within NYPD Guidelines**). PO Reyeslopez pushed § 87(2)(b) back three times (**Allegation B: Force, Within NYPD Guidelines**). After § 87(2)(b) walked away, PO Reyeslopez said about her, “I don’t care. She can still get it,” or “She gon’ get it” (**Allegation C: Abuse of Authority, Substantiated**). PO Reyeslopez said to an unidentified bystander, “I don’t give a fuck” (**Allegation D: Discourtesy, Within NYPD Guidelines**) and then said to the unidentified bystander, “You’re going to get Tased. The fuck? That’s what’s going to happen. What the fuck you talking about?” (**Allegation E: Abuse of Authority, Within NYPD Guidelines; Allegation D: Discourtesy, Within NYPD Guidelines**). PO Melissa Marquez, of the 48th Precinct, also pushed § 87(2)(b) (**Allegation F: Force, Substantiated**). PO Reyeslopez, PO Marquez, and PO Ferdows Kabuli, of the 48th Precinct, took § 87(2)(b) to the ground (**Allegations G, H, and I: Force, Within NYPD Guidelines**). PO Reyeslopez then threatened to use a Taser against § 87(2)(b) (**Allegation J: Abuse of Authority, Within NYPD Guidelines**).

§ 87(2)(b) was arrested and charged with Obstructing Governmental Administration and Resisting Arrest (Board Review 43).

The investigation obtained 50 BWC videos pertaining to this incident. The investigation also obtained cell phone video recordings provided by § 87(2)(b).

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Ismael Reyeslopez spoke discourteously to § 87(2)(b)

Allegation (B) Force: Police Officer Ismael Reyeslopez used physical force against § 87(2)(b)

§ 87(2)(b) provided a statement via telephone on September 25, 2024 (Board Review 01). On August 31, 2024, § 87(2)(b) drove her vehicle to the vicinity of East 175th Street and Mohegan Avenue in the Bronx with three passengers: § 87(2)(b) another unnamed individual, and § 87(2)(b) four-year-old daughter. There, she observed a large crowd of people and a pit bull in the roadway mauling other dogs. § 87(2)(b) called 911 twice to report her observations. When police arrived, an owner of one of the dead dogs killed the pit bull with a blunt object. Afterward, § 87(2)(b) continued to walk to her destination nearby, the home of an unnamed individual. PO Reyeslopez approached § 87(2)(b) and pushed her on the chest. § 87(2)(b) did not recall what PO Reyeslopez said after the push. § 87(2)(b) told PO Reyeslopez that the dog had already been killed and tried to walk around PO Reyeslopez. PO Reyeslopez pushed § 87(2)(b) on the chest again.

§ 87(2)(b) provided a statement via telephone on October 4, 2024 (Board Review 02). She stated that she, § 87(2)(b) and § 87(2)(b) daughter drove to the area and, at the beginning of Mohegan Avenue, saw a crowd of 10 to 15 people and a dog killing another dog. Both § 87(2)(b) and § 87(2)(b) called 911, and approximately 30 minutes later, 10 officers arrived on scene. The officers

yelled at the crowd, which included § 87(2)(b) and § 87(2)(b) daughter, to get back and move onto the sidewalk. Once the crowd had moved onto the sidewalk, they began to slowly move back into the roadway. § 87(2)(b) moved back into the roadway, and PO Reyeslopez and PO Marquez approached her. PO Reyeslopez pushed § 87(2)(b) with both hands on the chest. § 87(2)(b) stepped forward and yelled at him.

This incident was recorded in NYPD Events § 87(2)(b) generated at 20:42:28 on August 31, 2024, and reflects the report of a vicious animal, a pit bull, on the loose with no owner (Board Review 7). At 20:43:43, the Events comments note, “SMALL DOG DIED AND POSS OTHER DOG DIED.”

PO Reyeslopez’s BWC video (Board Review 05) begins at 8:50:58 PM and begins with him seated in the driver seat of a police vehicle (Board Review 5). At 35 seconds, PO Reyeslopez exits the vehicle. At 1 minute 10 seconds, PO Reyeslopez speaks to an unidentified person. And says, “I know, but I’m worried about the dog not biting anybody right now. That’s my main concern right now.” At 1 minute 28 seconds, PO Reyeslopez yells, “Everybody go back. Don’t walk this way. Walk that way.” At 1 minutes 36 seconds, PO Reyeslopez speaks to a man who identifies himself as the owner of the dogs that were killed. PO Reyeslopez says, “Homie, go that way. Go that way.” At 5 minutes 5 seconds, a child walks towards the intersection and PO Reyeslopez says, “Bro, just walk that way, alright? Go around. There’s a dog – a vicious dog right here. Just go around to the other side, alright? I just need everybody to get away from here, alright? Not right now. You’re definitely not going to walk this way right now. Just walk that way for me, alright? Literally, just cross the street for me.” At 9 minutes 57 seconds, § 87(2)(b) wearing a green dress, walks toward PO Reyeslopez, onto Mohegan Avenue. He says to her, “Guys, walk that way. Don’t come this way. I’m not going to tell you again. Walk that way.” § 87(2)(b) tells PO Reyeslopez that her house is, “that way,” pointing along Mohegan Avenue in the direction of the dog attack. PO Reyeslopez says, “But the dog is here too. I’m telling you to walk that way. You’re not walking this way.” § 87(2)(b) continues walking toward PO Reyeslopez. She stops directly in front of him and says, “My house is this way,” pointing along Mohegan Avenue. PO Reyeslopez says, “I don’t give a fuck.” She tries to walk past PO Reyeslopez. He places his right palm on her left shoulder and pushes her back, saying, “Move that way. You’re not walking this way.” § 87(2)(b) continues to state that her house is “this way.” PO Reyeslopez says that he did not ask where her house is and tells her to go the other way. She tries to walk past him again and he pushes her back again. She yells, “Don’t touch me,” and, “Why are you touching me?” He yells, “Because you’re not listening to me. Back up. Back up.” She moves toward him again and he pushes her back again. He yells, “Back the fuck up.” Other officers and civilians then intervene, moving between § 87(2)(b) and PO Reyeslopez. He yells, “Don’t fucking touch me. How many times do I got to tell you?” § 87(2)(b) pulls away from other civilians to approach PO Reyeslopez again. At 10 minutes 35 seconds, § 87(2)(b) and other civilians pull § 87(2)(b) away from PO Reyeslopez.

PO Marquez’s BWC video (Board Review 06) captures these interactions beginning to 10 minutes 27 seconds. PO Marquez turns toward the beginning of Mohegan Avenue, where PO Reyeslopez is speaking with § 87(2)(b). At 10 minutes 37, PO Reyeslopez side-steps to prevent § 87(2)(b) from walking past him and § 87(2)(b) says, “My house is this way though.” Between 10 minutes 40 seconds and 10 minutes 47 seconds, PO Reyeslopez pushes § 87(2)(b) three times. PO Reyeslopez can be heard saying, “Back the fuck up.”

A BWC video (Board Review 11) recorded by Detective Justin Verrino, of the Emergency Services Unit, shows at 2 minutes 7 seconds, or 9:05:07 PM, that at the time of PO Reyeslopez’s interaction with § 87(2)(b) the loose dog had not yet been killed.

PO Reyeslopez provided a statement on December 12, 2024 (Board Review 03). He stated that he received a 911 reporting a vicious animal. He and PO Marquez responded and saw a vicious pit bull that had already killed two other dogs. PO Reyeslopez immediately created a perimeter to contain the dog and prevent pedestrians from being bitten by the dog. The perimeter was the full length of the block. PO Reyeslopez and his partner observed a crowd gathering on the sidewalk near the intersection of East 175th Street and Mohegan Avenue. § 87(2)(b) then walked up to PO Reyeslopez, and PO Reyeslopez said to her, “I’m not going to tell you again, walk that way.” § 87(2)(b) responded that her house was in the direction of the dog, and PO Reyeslopez said, “I don’t give a fuck,” and pushed her on her shoulder. PO Reyeslopez used the word, “fuck,” due to both due to the heat of the moment and a need to gain § 87(2)(b) compliance. PO Reyeslopez initially pushed § 87(2)(b) due to her being too close to his zone of safety, as she was less than a foot away from his face. After PO Reyeslopez pushed § 87(2)(b) she said, “Don’t touch me,” and moved back into PO Reyeslopez’s space. In response, PO Reyeslopez pushed § 87(2)(b) two more times, and on the third push, said, “Back the fuck up. Don’t fucking touch me.” PO Reyeslopez explained, “The adrenaline is just out there.”

NYPD Patrol Guide Procedure 221-01 (Board Review 45) states that the primary duty of all members of the service is to protect human life. Further, it states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In determining whether the use of force is reasonable, members of the service should consider the following: The nature and severity of the crime/circumstances, actions taken by the subject, duration of the action, and immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, and the presence of a hostile crowd or agitators.

Per the Mission, Vision, and Values of the NYPD (Board Review 44), officers must render services with courtesy and civility.

According to DAO-DCT Case 2018-18951, officers have a responsibility to act with decorum in their interactions with civilians, though there are certain situations where profane remarks, such as those made during a stressful or chaotic situation, do not constitute misconduct (Board Review 10).

§ 87(2)(b) stated that the dog had been killed by the time she approached PO Reyeslopez. However, Det. Verrino’s BWC video shows that § 87(2)(b) interaction with PO Reyeslopez occurred approximately five minutes prior to the live capture of the vicious dog by ESU. PO Reyeslopez was positioned at the end of Mohegan Avenue in order to prevent civilians from moving onto the block where a dangerous dog was loose. § 87(2)(b) approached PO Reyeslopez intending to pass through the security perimeter PO Reyeslopez had established for her own safety and that of other civilians. PO Reyeslopez told § 87(2)(b) that she could not walk down the street multiple times, but she continued to try to walk past him, saying that her house was in that direction. At that point, PO Reyeslopez said, “I don’t give a fuck,” and pushed her back. § 87(2)(b) continued to attempt to pass PO Reyeslopez, at which point he continued to push her back to prevent her from passing into a highly dangerous area, and used additional profanity in telling her, “Back the fuck up,” and, “Don’t fucking touch me.” § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be closed as **Within NYPD Guidelines.** § 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegation B** be closed as **Within NYPD Guidelines.**

Allegation (C) Abuse of Authority: Police Officer Ismael Reyeslopez threatened § 87(2)(b) with the use of force.

Allegation (D) Abuse of Authority: Police Officer Ismael Reyeslopez spoke discourteously to an individual.

Allegation (E) Discourtesy: Police Officer Ismael Reyeslopez threatened an individual with the use of force.

While not alleged by § 87(2)(b) nor § 87(2)(b) BWC videos captured additional FADO allegations.

In PO Reyeslopez's BWC video (Board Review 05), at 10 minutes 33 seconds, other civilians pull § 87(2)(b) away from PO Reyeslopez. At 10 minutes 35 seconds, a man wearing a plaid flannel top, who helps pull § 87(2)(b) away says to PO Lopez, "Bro, that's a female." PO Reyeslopez says, "Bro, I don't care. She can still get it," or, "She gon' get it," and the, "She hit me in my face. I don't give a fuck." PO Reyeslopez begins to walk away, but turns again to face § 87(2)(b) who is now across the street, yelling at him. The unidentified male bystander in plaid stands nearby, to PO Reyeslopez's left. At 10 minutes 54 seconds, the man in plain says, "...snuff you right now." PO Reyeslopez approaches and says, "You're going to get Tased. The fuck? That's what's going to happen. What the fuck you talking about? Keep Walking. Get the – fly away. Fly away from here, bro."

In PO Marquez's BWC video (Board Review 06), at 11 minutes 5 seconds, civilians pull § 87(2)(b) away from PO Reyeslopez. The male in plaid says to PO Reyeslopez, "That's a female. She's a female. You don't do that, bro. You can't be pushing nobody like that." At 11 minutes 23 seconds, the man points at PO Marquez and says, "Let me ask you a question. If I snuffed you right now..." The remainder of his sentence is inaudible. PO Marquez, and all the officers within the immediate vicinity verbally respond, one stating, "You don't want to do that, bro," although it is not entirely audible. The man says, "I'm making an example." PO Reyeslopez approaches on PO Marquez's right and says, "Keep Walking. Get the – fly away. Fly away from here, bro."

When asked why he said of § 87(2)(b) "I don't care. She gon' get it," PO Reyeslopez (Board Review 03) said, "I don't know what to say." PO Reyeslopez did not know if his statement, "You're going to get Tased. The fuck?" was directed toward § 87(2)(b) or the male bystander. PO Reyeslopez stated that he did not intend to use his Taser at the time, and believed he made this remark to gain compliance and deter § 87(2)(b) from further interference. He stated that officers are trained to use Tasers when an individual actively resists. PO Reyeslopez stated, again, that at this point during the incident, "The adrenaline is just out there."

As above, NYPD Patrol Guide Procedure 221-01 (Board Review 45) states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In determining whether the use of force is reasonable, members of the service should consider the following: The nature and severity of the crime/circumstances, actions taken by the subject, duration of the action, and immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders.

NYPD Patrol Guide Procedure 221-02 (Board Review 46) states that a threat or overt act of an assault (through physical or verbal means), coupled with the present ability to carry out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent, constitutes active aggression.

NYPD Patrol Guide Procedure 221-08 (Board Review 47) states that Conducted Electrical Weapon (CEW, or Taser) can be an effective means of subduing aggressive suspects. A CEW should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present. It will often reduce the potential for injuries to members and suspects that may result from physical restraint and should be regarded as a possible alternative to such force and restraint, where practical. When feasible, officers should issue an appropriate verbal warning to the intended subject in order to gain voluntary compliance and prevent the need to use force.

Per the Mission, Vision, and Values of the NYPD (Board Review 44), officers must render services with courtesy and civility.

Per DAO-DCT case #2017-17276 (Board Review 48), language which would ordinarily be inappropriate in dealing with civilians may be excused during a violent and stressful confrontation..

§ 87(2)(g)

at this point, § 87(2)(b) had moved away from the immediate area and posed no threat to PO Reyeslopez or other officers, and was not obstructing any law enforcement activity. § 87(2)(g)

it is recommended that **Allegation C** be closed as **Substantiated**.

§ 87(2)(g)

his and PO Marquez's BWC videos, which shows that PO Reyeslopez approached and made that statement after the male bystander threatened to "snuff" PO Marquez, § 87(2)(g)

it is recommended that **Allegation E** be closed as **Within NYPD Guidelines**.

Although, when PO Reyeslopez said to the unidentified male, "I don't give a fuck," he was no longer actively engaged in a violent confrontation with § 87(2)(b) this remark was made immediately following their confrontation, § 87(2)(g)

when PO Reyeslopez said to the male, "The fuck" and, "What the fuck you talking about?" he was responding to the male's verbal threat against PO Marquez, immediately following his confrontation with § 87(2)(b) § 87(2)(g) it is recommended that **Allegation D** be closed as **Within NYPD Guidelines**.

Allegation (F) Force: Police Officer Melissa Marquez used physical force against § 87(2)(b)

§ 87(2)(b) (Board Review 01) stated that after PO Reyeslopez pushed her, PO Marquez also pushed her, though less forcefully than PO Reyeslopez. § 87(2)(b) then pushed PO Marquez in return.

In PO Marquez's BWC video (Board Review 06), at 11 minutes 33 seconds, the man in plaid walks away from the officers, crossing the street. § 87(2)(b) stands in the roadway yelling at the officers. A civilian in denim shorts pulls § 87(2)(b) away. § 87(2)(b) slowly walks toward another officer. A civilian or civilians yell that they will "fuck [the officers] up." PO Marquez then faces Mohegan Avenue as civilians continue to yell behind her. At 12 minutes 43 seconds, PO Marquez says to another officer, "She's about to get dis con. They all about to get dis con." § 87(2)(b) then approaches and asks for PO Reyeslopez's shield number. PO Reyeslopez provides it verbally, and PO Marquez also repeats PO Reyeslopez's shield number. At 12 minutes 52 seconds, PO Marquez steps between PO Reyeslopez and § 87(2)(b) again repeats PO Reyeslopez's shield number, tells § 87(2)(b) to back up, and touches her forearm. § 87(2)(b) responds, "No one asked you." PO Marquez places her right hand on § 87(2)(b) left arm and pushes her back approximately two to three feet. As § 87(2)(b) is stumbling backwards, she swipes at PO Marquez and says, "Fuck you, bitch."

In PO Reyeslopez's BWC video (Board Review 05), at 12 minutes 09 seconds, PO Marquez says to PO Reyeslopez, "She's about to get dis con." At 12 minutes 17 seconds, § 87(2)(b) approaches again and asks PO Reyeslopez for his shield number, which he provides verbally. She says that she is going to call IAB on him. He says, "Do your thing." Another civilian pulls § 87(2)(b) back, away from PO Reyeslopez. PO Marquez steps between PO Reyeslopez and § 87(2)(b). Nothing PO Marquez says is audible from PO Reyeslopez's perspective, but § 87(2)(b) says, "Okay, let me take his badge. Let me take his badge," while holding her phone. PO Reyeslopez repeats his shield number, and at 12 minutes 28 seconds, physical contact occurs between § 87(2)(b) and PO Marquez, though this angle does not show who initiated contact.

PO Marquez (Board Review 04) stated that after § 87(2)(b) initially moved away from the officers, she approached again and requested PO Reyeslopez's name and shield number, which PO Reyeslopez provided. § 87(2)(b) asked for PO Reyeslopez's badge shield again. PO Marquez intervened and stood in front of § 87(2)(b). She did this so as to deescalate the situation. PO Reyeslopez had already given § 87(2)(b) his name and shield number. PO Marquez believed § 87(2)(b) made a gesture to, "Get towards" her, approximately one foot away from her. Because of that gesture, PO Marquez pushed § 87(2)(b).

PO Reyeslopez (Board Review 03) stated that § 87(2)(b) returned to his immediate vicinity and asked him for his name and shield number, which he provided. PO Reyeslopez initially stated that § 87(2)(b) pushed PO Marquez on the shoulder, and then said that it was a "little push." Then, he said it was not a push, and that the officers had spent too much time dealing with her.

Per NYPD Patrol Guide Procedure 221-01 (Board Review 08), officers may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In determining whether the use of force is reasonable, members of the service should consider the nature and severity of the crime/circumstances, actions taken by the subject, duration of the action, and immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders.

§ 87(2)(g)

§ 87(2)(b) The BWC videos show that § 87(2)(b) approached PO Reyeslopez to obtain his shield number following their earlier violent confrontation. She did not appear to make any threatening gesture toward PO Marquez. § 87(2)(g)

§ 87(2)(b) rather than give § 87(2)(b) verbal orders to move away from PO Reyeslopez, or guide § 87(2)(b) away, PO Marquez forcefully pushed § 87(2)(b) with no warning, § 87(2)(g)

§ 87(2)(b) it is recommended that Allegation F be closed as **Substantiated**.

Allegation (K) Force: Police Officer Ismael Reyeslopez hit § 87(2)(b) against the ground.

Allegation (L) Force: Police Officer Ferdows Kabuli hit § 87(2)(b) against the ground.

Allegation (M) Force: Police Officer Melissa Marquez hit § 87(2)(b) against the ground.

Allegation (J) Abuse of Authority: Police Officer Ismael Reyeslopez threatened § 87(2)(b) with the use of force.

§ 87(2)(b) (Board Review 01) stated that after she pushed PO Marquez back, multiple officers pushed her to the ground, where she landed on her stomach. The officers then placed her in handcuffs.

§ 87(2)(b) (Board Review 02) stated that PO Reyeslopez grabbed one of § 87(2)(b) hands and pushed her to the ground. Additional officers then approached § 87(2)(b) got on top of her, and arrested her.

Additionally, BWC video shows that PO Reyeslopez threatened to use a Taser against § 87(2)(b)

In PO Reyeslopez's BWC video (Board Review 05), at 12 minutes 27 seconds, PO Marquez pushes § 87(2)(b) PO Reyeslopez moves quickly toward § 87(2)(b) who turns and runs. She turns around and tries to push PO Reyeslopez away, saying, "Don't touch me. At 12 minutes 32 seconds, PO Reyeslopez and other officers take hold of § 87(2)(b) who widens her stance and appears to attempt to pull away from them. At 12 minutes 37 seconds, § 87(2)(b) appears to fall over onto her buttocks, slowly, while officers stand around her and hold onto her upper body. The officers attempt to pull § 87(2)(b) hands behind her back, but she puts them away and pushes herself up onto her hands and knees. The officers tell her to stop. Between 12 minutes 46 seconds and 13 minutes 0 seconds, PO Reyeslopez attempts to handcuff § 87(2)(b) right wrist, but she continues resisting, and he drops his handcuffs. He says, "Ma'am, you're going to get Tased." At 13 minutes 2 seconds, the officers lift § 87(2)(b) to her feet, and an officer says, "Stop resisting." Finally, § 87(2)(b) allows the officers to pull her hands behind her back, and they handcuff her.

In PO Marquez's BWC video (Board review 06), at 13 minutes 0 seconds, § 87(2)(b) runs away from PO Marquez and PO Reyeslopez. At 13 minutes 3 seconds, PO Marquez takes hold of § 87(2)(b) The camera is then obscured and shakes. At 13 minutes 9 seconds, § 87(2)(b) is chest-down on the ground.

At the very beginning of PO Kabuli's BWC video (Board Review 05), PO Reyeslopez and PO Marquez chase after § 87(2)(b) and PO Kabuli follows to assist. The three officers take hold of § 87(2)(b) at 3 seconds and appear to grapple with her while upright. At 7 seconds, § 87(2)(b) falls sideways onto the ground, onto her buttocks.

PO Reyeslopez (Board Review 03) stated that he, PO Marquez, and PO Kabuli arrested § 87(2)(b) together, for Obstructing Governmental Administration. As the officers attempted to apprehend her, she pulled away from the officers in a manner that prevented the officers from handcuffing her. This caused § 87(2)(b) and other officers to fall. PO Reyeslopez stated, to his knowledge, no officers intentionally took § 87(2)(b) to the ground, and that they did not use a forcible takedown against her. PO Reyeslopez did not provide any statement about the threat to Taser § 87(2)(b).

PO Marquez (Board Review 04) also stated that she intended to arrest § 87(2)(b) for Obstructing Governmental Administration, but that she did not recall what occurred after she chased § 87(2)(b).

Per NYPD Patrol Guide Procedure 221-01 (Board Review 08), officers may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody.

NYPD Patrol Guide Procedure 221-08 (Board Review 47) states that Conducted Electrical Weapon (CEW, or Taser) can be an effective means of subduing aggressive suspects. A CEW should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present. It will often reduce the potential for injuries to members and suspects that may result from physical restraint and should be regarded as a possible alternative to such force and restraint, where practical. When feasible, officers should issue an appropriate verbal warning to the intended subject in order to gain voluntary compliance and prevent the need to use force.

BWC videos show that when the officers moved to arrest § 87(2)(b) and she fled, PO Reyeslopez, PO Marquez, and PO Kabuli took hold of her. She did not cooperate and instead grappled with the officers and pulled away from them, at which point she fell to the ground in a controlled manner. § 87(2)(g) BWC videos and officer statements do not make clear whether the officers intentionally took her to the ground, § 87(2)(g).

§ 87(2)(g) it is recommended that **Allegations G, H, and I** be closed as **Within NYPD Guidelines**.

BWC video shows that § 87(2)(b) actively resisted arrest by pulling away, pushing PO Reyeslopez away, tensing, and pushing herself up off of the ground, preventing officers from successfully handcuffing her. After struggling to handcuff § 87(2)(b) for approximately 20 seconds, PO Reyeslopez warned that he could use a Taser against her. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation J** be closed as **Within NYPD Guidelines**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 42).
- PO Reyeslopez has been a member of service for three years and has been a subject in one other CCRB complaint with six allegations, none of which were substantiated (Board Review 39). § 87(2)(g)
- PO Marquez has been a member of service for three years and has been a subject in one other CCRB complaint with four allegations, none of which were substantiated (Board Review 40).

§ 87(2)(g)

- PO Kabuli has been a member of service for two years and this is the first CCRB complaint to which he has been a subject (Board Review 41).

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of January 6, 2025, the New York City Office of the Comptroller had no record of a Notice of Claim filed in regard to this incident (Board Review 37).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 12

Investigator:	<u>Donovan P Webber</u>	<u>Inv. Webber</u>	<u>1/7/2025</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Samuel Ross</u>	<u>IM Samuel Ross</u>	<u>01/10/2025</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date